

DATA PRIVACY & PROTECTION

1. INTRODUCTION

Konn3ct is a product suite developed by Newwaves Ecosystem Ltd. For the purpose of effective comprehension, Newwaves Ecosystem shall herein be referred to as (“the Company” or “Company” or “Developer”) and konn3ct referred to as (“konn3ct” or “suite” or “product”).

In line with the [Terms of Service](#), the Company collects and processes certain types of information (such as name, telephone numbers, address, emails etc.) of individuals and organisations that makes them easily identifiable. These individuals and organisations include current, past and prospective employees/organisations, vendors, customers/clients and their representatives, next-of-kin and other individuals whom the Company communicate or deals with, jointly and/or severally (“Data Subjects”) for the purpose of the administration and operations of konn3ct.

Maintaining the Data Subject’s trust and confidence requires that Data Subjects do not suffer negative consequences/effects as a result of providing the Company in the usage of konn3ct with their Personal Data. To this end, the Company is firmly committed to complying with applicable data protection laws, regulations, rules and principles to ensure security of Personal Data handled by the Company. [This Data Privacy & Protection Policy](#) (“Policy”) describes the minimum standards that must be strictly adhered to regarding the collection, storage, use and disclosure of Personal Data and indicates that the Company is dedicated to processing the Personal Data it receives or processes with absolute confidentiality and security.

This Policy applies to all forms of systems, operations and processes within the Company environment that involve the collection, storage, use, transmission and disposal of Personal Data gathered through konn3ct.

Failure to comply with the data protection rules and guiding principles set out in the [Global Data Protection Regulations](#) (GDPR) and the [Nigeria Data Protection Regulations 2019](#) (NDPR) as well as those set out in this Policy is a material

violation of the Company's policies and may result in disciplinary action as required, including suspension or termination of employment or business relationship.

2. SCOPE

This Policy applies to all employees of the Company, as well as to any external subjects (such as suppliers, contractors, vendors and other service providers) who receive, send, collect, access, or process Personal Data in any way on behalf of The Company and for konn3ct, including processing wholly or partly by automated means. This Policy also applies to third party Data Processors who process Personal Data received from the Company (such as Cloud Service providers, Third-Party Applications, and other service providers).

3. GENERAL PRINCIPLES FOR PROCESSING OF PERSONAL DATA

The Company is committed to maintaining the principles in the NDPR regarding the processing of Personal Data.

To demonstrate this commitment as well as our aim of creating a positive privacy culture within the Company, the Company adheres to the following basic principles relating to the processing of Personal Data:

3.1 Lawfulness, Fairness and Transparency

Personal Data must be processed lawfully, fairly and in a transparent manner at all times. This implies that Personal Data collected and processed by or on behalf of the Company must be in accordance with the specific, legitimate and lawful purpose consented to by the Data Subject, save where the processing is otherwise allowed by law or within other legal grounds recognized in the NDPR.

3.2 Data Accuracy

Personal Data must be accurate and kept up-to-date. In this regard, the Company:

- a) shall ensure that any data it collects and/or processes is accurate and not misleading in a way that could be harmful to the Data Subject;
- b) will make efforts to keep Personal Data updated where reasonable and applicable; and

- c) will make timely efforts to correct or erase Personal Data when inaccuracies are discovered.

3.3 Purpose Limitation

konn3ct collects Personal Data only for the purposes identified in the appropriate company Privacy Notice or any other relevant document or based on any other non – written communication (where applicable), provided to the Data Subject and for which Consent has been obtained. Such Personal Data cannot be reused for another purpose that is incompatible with the original purpose, except a new Consent is obtained.

3.4 Data Minimization

3.4.1 The Company limits Personal Data collection and usage to data that is relevant, adequate, and absolutely necessary for carrying out the purpose for which the data is processed.

3.4.2 The Company will evaluate whether and to what extent the processing of personal data is necessary and where the purpose allows, anonymized data must be used.

3.5 Integrity and Confidentiality

3.5.1 The Company shall establish adequate controls in order to protect the integrity and confidentiality of Personal Data, both in digital and physical format and to prevent personal data from being accidentally or deliberately compromised.

3.5.2 Personal data of Data Subjects must be protected from unauthorized viewing or access and from unauthorized changes to ensure that it is reliable and correct.

3.5.3 Any personal data processing undertaken by an employee who has not been authorized to carry such out as part of their legitimate duties is unauthorized.

3.5.4 Employees may have access to Personal Data only as is appropriate for the type and scope of the task in question and are forbidden to use Personal Data for their own private or commercial purposes or to disclose them to unauthorized persons, or to make them available in any other way.

3.5.5 Human Resources Department must inform employees at the start of the employment relationship about the obligation to maintain personal data privacy. This obligation shall remain in force even after employment has ended.

3.6 Personal Data Retention

3.6.1 All personal information shall be retained, stored and destroyed by the Company in line with relevant Legislative and Regulatory Guidelines. For all Personal Data and records obtained, used and stored within the Company, the Company shall perform periodical reviews of the data retained to confirm the accuracy, purpose, validity and requirement to retain.

3.6.2 To the extent permitted by applicable laws and without prejudice to The Company's Retention Policy, the length of storage of Personal Data shall, amongst other things, be determined by:

- a) the contract terms agreed between the Company and the Data Subject or as long as it is needed for the purpose for which it was obtained; or
- b) whether the transaction or relationship has statutory implication or a required retention period; or
- c) an express request for deletion by the Data Subject; except where such Data Subject is under an investigation or under a subsisting contract which may require further processing or where the data relates to criminal records; or
- d) whether the Company has another lawful basis for retaining that information beyond the period for which it is necessary to serve the original purpose.

Notwithstanding the foregoing and pursuant to the NDPR, the Company shall be entitled to retain and process Personal Data for archiving, scientific research, historical research or statistical purposes for public interest.

3.6.3 The Company would forthwith delete Personal Data in the Company's possession where such Personal Data is no longer required by the Company or in line with the Company's Retention Policy, provided no law or regulation being in force requires the Company to retain such Personal Data.

3.7 Accountability

3.7.1 The Company demonstrates accountability in line with the NDPR obligations by monitoring and continuously improving data privacy practices within The Company.

3.7.2 Any individual or employee who breaches this Policy may be subject to internal disciplinary action (up to and including termination of their

employment); and may also face civil or criminal liability if their action violates the law.

4.0 DATA PRIVACY NOTICE

4.1 The Company considers Personal Data as confidential and as such must be adequately protected from unauthorized use and/or disclosure. The Company will ensure that the Data Subjects are provided with adequate information regarding the use of their Personal Data as well as acquire their respective Consent, where necessary.

4.2 The Company shall display a simple and conspicuous notice (Privacy Policy) on any medium through which Personal Data is being collected or processed. The following information must be considered for inclusion in the Privacy Notice, as appropriate in distinct circumstances in order to ensure fair and transparent processing:

- a) Description of collectible Personal Data
- b) Purposes for which Personal Data is collected, used and disclosed
- c) What constitutes Data Subject's Consent
- d) Purpose for the collection of Personal Data
- e) The technical methods used to collect and store the information
- f) Available remedies in the event of violation of the Policy and the timeframe for remedy.
- g) Adequate information in order to initiate the process of exercising their privacy rights, such as access to, rectification and deletion of Personal Data,

5.0 PURPOSE AND CATEGORY OF DATA COLLECTED AND PROCESSED

5.1 We will only collect and use your Personal data if we have obtained your prior consent or have a lawful and legitimate interest to do so. You are at liberty to withdraw your consent at any time by contacting the Data Protection Officer at dataprotectionofficer@newwavesecosystem.com. The following are data collected and processed by the Company:

- Communication data (e.g. name, telephone, e-mail, address, IP address);
- Key contract data (contractual relationship, product or contractual interest);
- Customer history;
- Contract billing and payments data;

- Planning and control data;
- Disclosed information (from third parties);
- Employee and prospective employee data collected for recruitment and onboarding purpose;

5.2 The following are methods adopted by the Company in the collection and storage of personal data –

- Cookies;
- Online Forms

6.0 LEGAL GROUNDS FOR PROCESSING OF PERSONAL DATA

In line with the provisions of the NDPR, processing of Personal Data by the Company shall be lawful if at least one of the following applies:

- a) the Data Subject has given Consent to the processing of his/her Personal Data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the Data Subject is party or in order to take steps at the request of the Data Subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the Company is subject;
- d) processing is necessary in order to protect the vital interests of the Data Subject or of another natural person, and
- e) processing is necessary for the performance of a task carried out in the public interest or in exercise of official public mandate vested in The Company.

7.0 CONSENT

Where processing of Personal Data is based on consent, the Company shall obtain the requisite consent of Data Subjects at the time of collection of Personal Data. In this regard, the Company will ensure:

- a) that the specific purpose of collection is made known to the Data Subject and the Consent is requested in a clear and plain language;
- b) that the Consent is freely given by the Data Subject and obtained without fraud, coercion or undue influence;
- c) that the Consent is sufficiently distinct from other matters to which the Data Subject has agreed;
- d) that the Consent is explicitly provided in an affirmative manner;

- e) that Consent is obtained for each purpose of Personal Data collection and processing; and
- f) that it is clearly communicated to and understood by Data Subjects that they can update, manage or withdraw their Consent at any time.

7.1 Valid Consent

7.1.1 For Consent to be valid, it must be given voluntarily by an appropriately informed Data Subject. In line with regulatory requirements, Consent cannot be implied. Silence, pre-ticked boxes or inactivity does not constitute Consent under the NDPR.

7.1.2 Consent in respect of Sensitive Personal Data must be explicit. A tick of the box would not suffice.

7.2 Consent of Minors

The Consents of minors (under the age of 18) will always be protected and obtained from minor's representatives in accordance with applicable regulatory requirements.

8.0 DATA SUBJECT RIGHTS

8.1 All individuals who are the subject of Personal Data held by The Company are entitled to the following rights:

- a) Right to request for and access their Personal Data collected and stored. Where data is held electronically in a structured form, such as in a Database, the Data Subject has a right to receive that data in a common electronic format;
- b) Right to information on their personal data collected and stored;
- c) Right to objection or request for restriction;
- d) Right to object to automated decision making;
- e) Right to request rectification and modification of their data which the Company keeps;
- f) Right to request for deletion of their data, except as restricted by law or The Company's statutory obligations;
- g) Right to request the movement of data from the Company to a Third Party; this is the right to the portability of data; and
- h) Right to object to, and to request that the Company restricts the processing of their information except as required by law or The Company's statutory obligations

8.2 The Company's well-defined procedure regarding how to handle and answer Data Subject's requests are contained in The Company's Data Subject Access Request Policy.

8.3 Data Subjects can exercise any of their rights by completing the the Company's Subject Access Request (SAR) Form and submitting to the Company via dataprotectionofficer@newwavesecosystem.com

9.0 TRANSFER OF PERSONAL DATA

9.1 Third Party Processor within Nigeria

The Company may engage the services of third parties in order to process the Personal Data of Data Subjects collected by the Company. The processing by such third parties shall be governed by a written contract with the Company to ensure adequate protection and security measures are put in place by the third party for the protection of Personal Data in accordance with the terms of this Policy and the NDPR.

9.2 Transfer of Personal Data to Foreign Country

9.2.1 Where Personal Data is to be transferred to a country outside Nigeria, the Company shall put adequate measures in place to ensure the security of such Personal Data. In particular, the Company shall, among other things, conduct a detailed assessment of whether the said country is on the National Information Technology Development Agency (NITDA) White List of Countries with adequate data protection laws.

9.2.2 Transfer of Personal Data out of Nigeria would be in accordance with the provisions of the NDPR. The Company will therefore only transfer Personal Data out of Nigeria on one of the following conditions:

- a) The consent of the Data Subject has been obtained;
- b) The transfer is necessary for the performance of a contract between the Company and the Data Subject or implementation of pre-contractual measures taken at the Data Subject's request;
- c) The transfer is necessary to conclude a contract between the Company and a third party in the interest of the Data Subject and the Company;
- d) The transfer is necessary for reason of public interest
- e) The transfer is for the establishment, exercise or defence of legal claims
- f) The transfer is necessary in order to protect the vital interests of the Data Subjects or other persons, where the Data Subject is physically or legally incapable of giving consent.

Provided, in all circumstances, that the Data Subject has been manifestly made to understand through clear warnings of the specific principle(s) of data protection that are likely to be violated in the event of transfer to a third country, this proviso shall not apply to any instance where the Data Subject is answerable in duly established legal action for any civil or criminal claim in a third country.

The Company will take all necessary steps to ensure that the Personal Data is transmitted in a safe and secure manner. Details of the protection given to your information when it is transferred outside Nigeria shall be provided to you upon request.

9.2.3 Where the recipient country is not on the White List and none of the conditions stipulated in Section 8.2.2 of this Policy is met, the Company will engage with NITDA and the Office of the Honourable Attorney General of the Federation (HAGF) for approval with respect to such transfer.

10. DATA BREACH MANAGEMENT PROCEDURE

10.1 A data breach procedure is established and maintained in order to deal with incidents concerning Personal Data or privacy practices leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data transmitted, stored or otherwise processed.

10.2 All employees must inform their designated line manager or the DPO of konn3ct immediately about cases of violations of this Policy or other regulations on the protection of Personal Data, in accordance with the Company's Personal Data Breach Management Procedure in respect of any:

- a) improper transmission of Personal Data across borders;
- b) loss or theft of data or equipment on which data is stored;
- c) accidental sharing of data with someone who does not have a right to know this information;
- d) inappropriate access controls allowing unauthorized use;
- e) equipment failure;
- f) human error resulting in data being shared with someone who does not have a right to know; and
- g) hacking attack.

10.3 A data protection breach notification must be made immediately after any data breach to ensure that:

- a) immediate remedial steps can be taken in respect of the breach;
- b) any reporting duties to NITDA or any other regulatory authority can be complied with;
- c) any affected Data Subject can be informed; and
- d) any stakeholder communication can be managed.

10.4 When a potential breach has occurred, the Company will investigate to determine if an actual breach has occurred and the actions required managing and investigating the breach as follows:

- a) Validate the Personal Data breach;
- b) Ensure proper and impartial investigation (including digital forensics if necessary) is initiated, conducted, documented, and concluded;
- c) Identify remediation requirements and track resolution;
- d) Report findings to the top management;
- e) Coordinate with appropriate authorities as needed;
- f) Coordinate internal and external communications; and
- g) Ensure that impacted Data Subjects are properly notified, if necessary.

11 DATA SECURITY

11.1 All Personal Data must be kept securely and should not be stored any longer than necessary. The Company will ensure that appropriate measures are employed against unauthorized access, accidental loss, damage and destruction to data. This includes the use of password-encrypted databases for digital storage and locked cabinets for those using paper form.

11.2 To ensure security of Personal Data, the Company will, among other things, implement the following appropriate technical controls:

- a) Industry-accepted hardening standards, for workstations, servers, and databases;
- b) Full disk software encryption on all corporate workstation/laptops operating systems drives storing Personal and Personal/Sensitive Data;
- c) Encryption at rest including key management of key databases;
- d) Enable Security Audit Logging across all systems managing Personal Data;
- e) Restrict the use of removable media such as USB flash, disk drives;
- f) Anonymization techniques on testing environments; and
- g) Physical access control where Personal Data are stored in hardcopy.

12 DATA PROTECTION OFFICER

The Company has appointed a Data Protection Officer(s) (DPO) responsible for overseeing the Company's data protection strategy and its implementation to ensure compliance with the NDPR requirements. The DPO is knowledgeable in data privacy and protection principles and is familiar with the provisions of the NDPR.

The contact details of the Data Protection officer are as follows –

The Data Protection Officer

Newwaves Ecosystem

Lagos, Nigeria

dataprotectionofficer@newwavesecosystem.com

- a) The main tasks of the DPO include: administering data protection policies and practices of the Company;
- b) monitoring compliance with the NDPR and other data protection laws, data protection policies, awareness-raising, training, and audits;
- c) advice the business, management, employees and third parties who carry on processing activities of their obligations under the NDPR;
- d) acts as a contact point for the Company;
- e) monitor and update the implementation of the data protection policies and practices of the Company and ensure compliance amongst all employees of The Company;
- f) ensure that the Company undertakes a Data Impact Assessment and curb potential risk in the Company data processing operations; and
- g) maintain a Data Base of all the Company data collection and processing operations of The Company.
- h)

13. TRAINING

The Company shall ensure that employees who collect, access and process Personal Data receive adequate data privacy and protection training in order to develop the necessary knowledge, skills and competence required to effectively manage the compliance framework under this Policy and the NDPR with regard to the protection of Personal Data. On an annual basis, The Company shall

develop a capacity building plan for its employees on data privacy and protection in line with the NDPR.

14. DATA PROTECTION AUDIT

The Company shall conduct an annual data protection audit through a licensed Data Protection Compliance Organization (DPCOs) to verify the Company's compliance with the provisions of the NDPR and other applicable data protection laws.

The audit report will be certified and filed by the DPCO to NITDA as required under the NDPR.

15. RELATED POLICIES AND PROCEDURES

This Policy shall be read in conjunction with the following policies and procedures of the Company:

- Cookies Policy; and
- Privacy Notices;

16. CHANGES TO THE POLICY

The Company reserves the right to change, amend or alter this Policy at any point in time. If we amend this Policy, we will provide you with the updated version.

17. GLOSSARY

“Consent” means any freely given, specific, informed and unambiguous indication of the Data Subject's wishes by which he or she, through a statement or a clear affirmative action, signifies agreement to the processing of Personal Data relating to him or her.

“Database” means a collection of data organized in a manner that allows access, retrieval, deletion and processing of that data; it includes but not limited to structured, unstructured, cached and file system type Databases.

“Data Processor means a person or organization that processes Personal Data on behalf and on instructions of The Company.

“DPCO” means an organization registered by NITDA to provide data protection audit, compliance and training services to public and private organizations that process Personal Data in Nigeria.

“Data Subject” means any person, who can be identified, directly or indirectly, by reference to an identification number or to one or more factors specific to his physical, physiological, mental, economic, cultural or social identity.

“NDPR” means the Nigerian Data Protection Regulation, 2019.

“Personal Data” means any information relating to an identified or identifiable natural person (‘Data Subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person; It can be anything from a name, address, a photo, an email address, bank details, posts on social networking websites, medical information, and other unique identifier such as but not limited to MAC address, IP address, IMEI number, IMSI number, SIM, Personal Identifiable Information (PII) and others.

“Sensitive Personal Data” means data relating to religious or other beliefs, sexual orientation, health, race, ethnicity, political views, trades union membership, criminal records or any other sensitive personal information.